

10 Fire Prevention and Life Safety

All the buildings shall be planned, designed, and constructed to ensure fire prevention and life safety measures and this shall be done in accordance with relevant provisions of Uttar Pradesh Fire and Emergency Services Act, 2022 and Uttar Pradesh Fire and Emergency Services Rules, 2024.

10.1 Fire prevention and life safety measures.

10.1.1 Building owners to provide and maintain fire prevention and life safety measures.

As per Section 26 of Uttar Pradesh Fire and Emergency Services Act, 2022, liability to provide fire prevention and life safety measures shall remain with owner or the occupier who is either individually or jointly responsible of a building. The owner or the occupier shall:

- i. Provide minimum firefighting and life safety installations as required by the fire-safety regulations or norms or guidelines made under NBC 2016, these building byelaws, Oil Industry Safety Directorate guidelines, Petroleum Act and Rules, Explosive Act and Rules of India relating to fire prevention, or any relevant guidelines by the State Government or local authority as amended from time to time.
- ii. Maintain the fire prevention and life safety measures in operational condition at all times, in the manner and specifications specified in relevant fire-safety regulations or norms or guidelines.

10.1.2 Compliances for Occupancy Certificate

Occupancy certificate for a building shall not be issued, unless the development authority is satisfied that the owner or occupier, either individually or jointly, has complied with the provisions.

10.1.3 Fire Safety Certificate for Multi-storied buildings and Special Buildings as per Fire Act

Without prejudice to these building byelaws and enforcement of byelaws by the State, following buildings shall obtain 'Fire Safety Certificate' from Fire and Emergency Services;

- a) Multi-storied buildings having more than 15 meters height.
- b) Special buildings like educational, institutional, assembly, business, mercantile, industrial, storage and hazardous buildings as defined in National Building Code as amended from time to time.
- c) Mixed occupancies with any of the aforesaid occupancies having more than 500 square meter covered area.

Owners of above categories of buildings shall ensure that such buildings are equipped with fire prevention, fire and life safety and fire protection system to prevent or extinguish fire as per the prescribed rules, i.e. Uttar Pradesh Fire and Emergency Services Rules 2024.

10.2 Minimum Standards for Fire prevention and Life Safety for permanent structures

10.2.1 Prescribed minimum standards for fire prevention and life safety in buildings.

In line with Uttar Pradesh Fire and Emergency Services Rules 2024 and the Uttar Pradesh Fire and Emergency Services Act of 2022, the minimum standards for fire prevention and fire safety shall be determined with respect to the building height, covered area, and occupancy of such building or premises as warranted in the byelaws and relevant code and standards as applicable to such building at the time of construction or approval of the map, thereof namely:

1. Access to building
2. Number, width, type and arrangement of exits.

3. Smoke management system in controlled environment building.
4. Fire extinguishers.
5. First-aid hose reels
6. Automatic fire detection and alarming system
7. Public address system
8. Automatic sprinkler system
9. Internal hydrants and yard hydrants
10. Pumping arrangements,
11. Captive water storage for fire fighting
12. Exit signage,
13. Fire Lifts
14. Standby power supply
15. Refuge area.
16. Special fire protection systems for protection of special risks, if applicable.
17. Manually Operated Electronic Fire Alarm system (MOEFA).
18. Electrical safety audit report issued by electrical safety department or contractor authorized by state government.
19. Certificate for installation of fire protection system by Qualified Agency as applicable.
20. Appointment letter of fire safety officer, if required.
21. Safety certificate of lift issued by the competent authority, if required.

Note: Provided that these norms shall not be applicable to all type of buildings requiring fire safety certificate, rather the requirement shall be assessed purely based on covered area, building height and type of occupancy of the building as detailed in bye laws, national building code or relevant Act, rules and standards as applicable to such building.

Access to the building shall mean the availability of means of approach to each floor of the building or to nearest point of the building in case of emergency-situation for firefighting and/or rescue operations at least from one side like-road or permanent open space etc.

10.3 Issuance of Fire Safety Certificate and its renewal

10.3.1 Existing Buildings

Existing Buildings refer to such buildings, which have their super structure completed prior to the commencement of Uttar Pradesh Fire and Emergency Services Rules, 2024 and the Uttar Pradesh Fire and Emergency Services Act, 2022. From the point of view of fire safety, the existing buildings shall be identified and classified as follows.

1) Buildings approved by the competent authority, and in which no objection certificate from the fire department was taken and approved as per the requirements related to fire safety.

For such buildings whenever an application is received for final or renewal fire NOC of the Uttar Pradesh Fire and Emergency Services Act, 2022 and Uttar Pradesh Fire and Emergency Services Rules, 2024, the inspecting officer shall evaluate the installed fire protection and life safety system on the basis of prevailing standards and executive instructions/ Government Order at the time when such NOC was issued thereunder and in accordance with the measures as detailed in Uttar Pradesh Fire Emergency and Services Rules, 2024.

The provisions relating to access, and exit requirements as given in Uttar Pradesh Fire Emergency and Services Rules, 2024 shall be complied as per the arrangements made in the approved map.

2) Buildings approved by the competent authority which were constructed /regulated as per building byelaws prevalent at that time and in which fire safety certificate was not mandatory.

For such buildings, structural changes shall not be mandatory for the qualification mentioned in Uttar Pradesh Fire Emergency and Services Rules, 2024, especially for access, and exit requirement but other requirements related to fire prevention and life safety shall be ensured on 'case to case basis'.

3) Old constructed buildings whose maps are not approved.

Provision of access road, setback and fire escape shall not be mandatory. However, all other requirements as mentioned in Uttar Pradesh Fire Emergency and Services Rules, 2024 shall be ensured on 'case to case basis'.

10.3.2 Building other than existing buildings

Whenever an application is received for Provisional, Final or Renewal Fire Safety Certificate as the case may be, under Uttar Pradesh Fire and Emergency Services Act, 2022 and Uttar Pradesh Fire and Emergency Services Rules, 2024, the fire officers shall issue such certificate in a prescribed format.

Such buildings shall be planned, designed and constructed ensuring fire safety as per requirements of National Building Code of India-2016 ensuring necessary provisions for fire prevention and life safety as per Uttar Pradesh Fire Emergency and Services Rules, 2024 are adhered to.